

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Jesus Cuello	:	Index Number:
	:	Date Purchased:
	:	Date Filed:
Plaintiff	:	SUMMONS
-against-	:	
City of New York, New York City Police Department,	:	
Detective Rahmaan Wiltshire, Shield 27481 of the 46	:	
Precinct, Police Officer Rafael Guzman of the 46 Precinct	:	
and New York City Police Officers John Doe,	:	
	:	Plaintiff's residence is:
	:	1749 Grand Concourse
	:	Bronx, NY 10453
Defendants	:	
-----X		

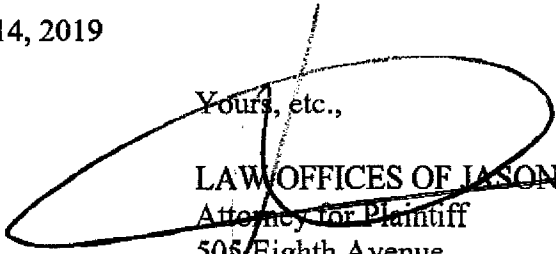
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: December 14, 2019
Bronx, NY

Yours, etc.,


LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Detective Rahmaan Wiltshire, Shield 27481 of the 46 Precinct

Police Officer Rafael Guzman of the 46 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
Jesus Cuello	:	
	:	
Plaintiff	:	VERIFIED COMPLAINT
-against-	:	
City of New York, New York City Police Department,	:	
Detective Rahmaan Wiltshire, Shield 27481 of the 46	:	
Precinct, Police Officer Rafael Guzman of the 46 Precinct	:	
and New York City Police Officers John Doe,	:	
	:	
Defendants.	:	
-----X	:	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Jesus Cuello, (hereinafter referred to a "CUELLO") is resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Detective Rahmaan Wiltshire, Shield 27481 of the 46 Precinct, (hereinafter referred to as "WILTSHIRE") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Police Officer Rafael Guzman of the 46 Precinct (hereinafter referred to as "GUZMAN") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, New York City Police Officers John Doe, the officers involved in the arrest of CUELLO, (hereinafter referred to as "DOE") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about May 15, 2019 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiff's claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. On or about October 14, 2019 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

9. That on or about July 19, 2019 an individual named Shawn Burt, (hereinafter referred to as "BURT") made a complaint that a male, who was unknown to BURT, pointed a gun towards BURT and that BURT throw a wallet towards said male and that said stole the wallet and its contents from BURT.

10. That WILTSHIRE, GUZMAN and DOES were assigned to investigate the claimed robbery.

11. That during the course of their investigation and prior to arresting Plaintiff, WILTSHIRE, GUZMAN and DOES spoke with BURT.
12. That during the course of their investigation and prior to arresting Plaintiff, WILTSHIRE, GUZMAN and DOES reviewed video of the incident.
13. That the video WILTSHIRE, GUZMAN and DOES reviewed clearly showed that no one pointed a gun towards BURT.
14. That the video WILTSHIRE, GUZMAN and DOES reviewed clearly showed that BURT was not robbed.
15. That the video WILTSHIRE, GUZMAN and DOES reviewed clearly showed that BURT never threw his wallet to anyone.
16. That the video WILTSHIRE, GUZMAN and DOES review clearly showed that no one took any property from BURT.
17. That despite reviewing the video, WILTSHIRE, GUZMAN and DOES made a determination to arrest Plaintiff for Robbery in the First Degree and related offenses.
18. That on or about July 30, 2019, at approximately 6:00 PM in the vicinity of 1777 Grand Concourse, Bronx, NY Plaintiff was walking towards a local restaurant when WILTSHIRE, GUZMAN and DOES stopped, handcuffed and arrested Plaintiff.
19. That Plaintiff denied robbing anyone to WILTSHIRE and DOES.
20. That Plaintiff told WILTSHIRE and DOES to review video footage from the area because the video would exonerate him.
21. That at no time did Plaintiff rob anyone.
22. That at no time did Plaintiff possess a gun or what appeared to be a gun.
23. That at no time did Plaintiff take property belonging to BURT.

24. That after Plaintiff was arrested he was transported to the 46 precinct.
25. That while Plaintiff was in the 46 precinct, he placed in a cell with other males for several hours.
26. That while Plaintiff was in the 46 precinct, he placed was strip searched and that nothing of an illegal nature was recovered.
27. That after being held in a cell inside of the 46 precinct for several hours, Plaintiff was transferred to Bronx County Central Booking located at 215 East 161 Street, Bronx, New York.
28. That on or about August 1, 2019 Plaintiff was arraigned in Bronx County Criminal Court on docket 2019BX021222 charging him with Robbery in the First Degree, Robbery in the Second Degree, Robbery in the Third Degree, Grand Larceny in the Fourth Degree and Petit Larceny.
29. That CUELLO, on his own, located the video that exonerated him.
30. That CUELLO produced the video that exonerated him to the Office of the Bronx District Attorney.
31. That on or before August 28, 2019, CUELLO testified in the Grand Jury wherein he narrated every aspect of the video to the members of the Grand Jury.
32. That on and between August 1, 2019 and August 28, 2019, Plaintiff made several court appearances until the Office of the Bronx District Attorney dismissed the case.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

33. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

34. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

35. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for her physical safety when she sees and encounter members of the New York City Police Department from the day of his arrest and onward.

36. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

37. That as a result of Defendants' actions, Plaintiff missed several days of work.

38. That as a result of the Defendants' actions Plaintiff sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

39. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

41. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for her constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

42. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

44. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

46. That knowing that Plaintiff had not trespassed or possessed marijuana, MONCION and DOES persisted in their claims that he had in an effort to continue the prosecution against Plaintiff.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

47. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. At all times pertinent hereto, WILTSHIRE, GUZMAN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

49. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that WILTSHIRE, GUZMAN and DOES were committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

50. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 49, as if more fully stated herein at length.

51. The City of New York and New York City Police Department's failure to provide adequate training and supervision to WILTSHIRE, GUZMAN and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

52. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

54. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

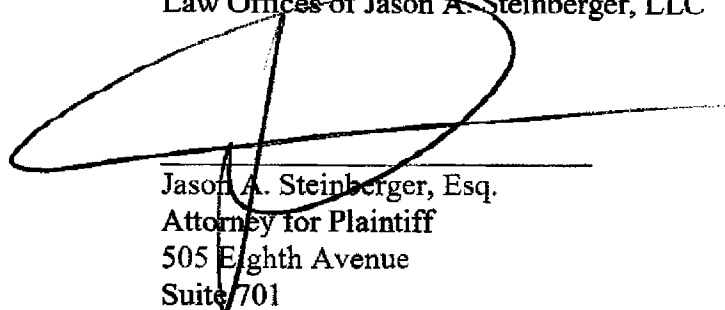
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

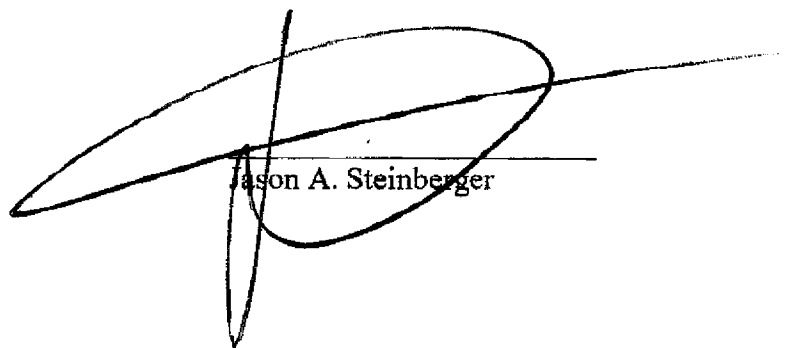


Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: December 14, 2019



Jason A. Steinberger

Index Number:**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****JESUS CUELLO****Plaintiff,****-against-****CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE
RAHMAAN WILTSHIRE, SHIELD 27481 OF THE 46 PRECINCT, POLICE OFFICER
RAFAEL GUZMAN OF THE 46 PRECINCT AND NEW YORK CITY POLICE
OFFICERS JOHN DOE,****Defendant.****SUMMONS AND COMPLAINT****LAW OFFICES OF JASON A. STEINBERGER, LLC
505 Eighth Avenue
Suite 701
New York, NY 10018****To:
Attorney (s) for Defendant(s)****Service of a copy of the within****is hereby admitted.****Dated:****Attorney(s) for****PLEASE TAKE NOTICE**☐ **that the within is a (certified) true copy of**
☐ **entered in the office of the clerk of the within named Court on****NOTICE
OF ENTRY**☐ **that an Order of which the within is a true copy will be presented for settlement to the Hon.**
NOTICE OF **once of the Judges of the within named Court,**
SETTLEMENT **at**
on **200** **, at** **m.****Dated:****JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018****To:
Attorney(s) for**